

一般社団法人 Setup — Mitsue Project

General Incorporated Association · No government approval needed

Key advantages over NPO for Mitsue Project: Only 2 founding members needed (not 10). No prefecture review period (months → weeks). No activity category restrictions. No annual reporting to prefecture. Can pursue 公益社団法人 status later for donation tax benefits. Total cost approx. **¥112,000–¥120,000** (notary ¥52,000 + registration ¥60,000 + misc).

Phase 1 — Founding decisions (~1–2 weeks)

☐ Decide on association name (名称)

Must include 一般社団法人 at the start of the official name — e.g. 一般社団法人御杖プロジェクト. Check for conflicts at the Legal Affairs Bureau online registry (登記情報提供サービス).

☐ Recruit founding members (設立時社員)

Minimum 2 members (社員) only — you and Yuka qualify. 社員 = voting members who attend general assemblies. Can be increased later. (2 members min)

☐ Appoint directors (理事)

Minimum 1 理事 required (no maximum stated in law, but typically 3 for credibility). One becomes 代表理事. For 公益社団法人 upgrade later you'll need at least 3. (1 director min)

☐ Appoint auditor (監事) — optional but recommended

Not legally required for 一般社団法人, but strongly recommended for grant applications and credibility. Cannot be a director or employee.

☐ Choose office address (主たる事務所)

The closed Mitsue Elementary School address is ideal if you have a consent letter from the village. Alternatively use your home address for now — it can be changed later.

☐ Decide fiscal year (事業年度)

Any 12-month period. April–March (Japanese standard) is common and aligns with municipal grant cycles. Or calendar year Jan–Dec for international donors.

Phase 2 — Draft 定款 (Articles of Incorporation) (~1–2 weeks)

☐ Draft 定款 (teikan)

The core document — must be notarized. Mandatory clauses: name, purpose, office address, fiscal year, 社員 admission/exit rules, general assembly rules, director rules, dissolution/liquidation. Use a 司法書士 or templates from the Nara Legal Affairs Bureau. ⚠️ *Notarization required*

☐ Define the association's purpose (目的)

No category restrictions unlike NPO — write freely. E.g.: 御杖村における里山再生、廃校活用、地域コミュニティの活性化、及び環境・情報技術を活用した持続可能な地域発展の推進. Include forest restoration, school repurposing, biomass, data center, community revival.

☐ Define 社員 admission rules

Specify how new members join (application + board approval is standard), any membership fees (会費), and exit/expulsion rules.

☐ **Define general assembly (社員総会) rules**

Quorum, voting method (majority or supermajority), how meetings are convened (written notice period — typically 1 week minimum).

☐ **Define director terms and rules**

Term limits (max 2 years per term, renewable), how directors are elected (by 社員総会), representative director designation method.

☐ **Include dissolution/asset disposition clause**

Required: specify what happens to remaining assets on dissolution. For 一般社団法人 assets CANNOT go to members — must go to another legal entity or national/local government.

Phase 3 — Founding assembly & notarization (~1 week)

☐ **Hold 設立総会 (founding assembly)**

All founding 社員 meet and formally adopt the 定款, elect directors (and auditor if applicable). Record detailed minutes. (設立総会議事録 required)

☐ **Collect 就任承諾書 from each director/auditor**

Written consent from each 理事 and 監事 accepting their appointment. Simple one-page document.

☐ **Get 定款 notarized by 公証人**

Visit a notary public office (公証人役場) — nearest to Mitsue is likely Nara City or Sakurai. Bring: printed 定款 (3+ copies), founding member IDs, 実印 (registered personal seal), and ¥52,000 fee. Can also use electronic notarization (電子公証) to save time. ⚠ 実印 required · Fee: ¥52,000

☐ **Prepare 設立時社員名簿 (founding member list)**

Name and address of all founding 社員. Signed/sealed.

Phase 4 — Register at 法務局 & post-setup (~1–2 weeks)

☐ **File 設立登記申請書 at Legal Affairs Bureau (法務局)**

Submit to Nara District Legal Affairs Bureau (奈良地方法務局) or nearest branch office. Must be filed within 2 weeks of the founding assembly date. ⚠ 2-week deadline · Fee: ¥60,000

☐ **Submit: certified 定款 copy**

Certified copy from the notary (公証人役場).

☐ **Submit: 設立時社員名簿**

Founding member list.

☐ **Submit: 就任承諾書 for each officer**

Consent-to-appoint letters for each 理事 (and 監事 if applicable).

☐ **Submit: 印鑑届出書 (seal registration)**

Register the association's official 代表者印 at the 法務局. Purchase a formal 法人印 (association seal) first — budget ¥5,000–¥15,000.

☐ **Obtain 登記事項証明書 (corporate registry certificate)**

After registration is complete (~1 week), obtain certified copies (¥600/copy). Need multiple — for bank, tax office, grants, contracts.

☐ **Open association bank account (法人口座)**

Bring: 登記事項証明書 + 定款 + 法人印 + 代表理事 personal ID. Japan Post Bank (ゆうちょ) or regional bank (南都銀行 in Nara). Budget 2–4 weeks for approval.

☐ **File 法人設立届出書 at tax office (税務署)**

Notify local 税務署 within 2 months of registration. Also notify Nara 県税事務所 and Mitsue Village office (村役場). No fee. ⚠️ *2-month deadline*

☐ **Register for My Number (法人番号) — automatic**

After registration, the National Tax Agency automatically assigns a 法人番号 (13-digit corporate number). Check at the NTA 法人番号公表サイト ~1 week after registration.

☐ **Optional: apply for 公益社団法人 status later**

After 1+ years of operation, can apply to the 公益認定等委員会 for 公益社団法人 status — makes donations tax-deductible for donors. Very stringent requirements. May be valuable for Joi/Ray's network fundraising.